

		Objections asserted in each of the four sets of discovery, a careful analysis of each request is needed, and the parties have not submitted argument or authority addressing each request. Also, the parties have not yet met and conferred regarding the responses to the specific requests. Although the four Motions to Compel Responses are DENIED, it is without prejudice to filing a Motion to Compel Further Responses and without prejudice to the City seeking discovery from plaintiff via other methods. In addition to responses to discovery, the City seeks monetary sanctions as to each motion. <i>Cal. Rules of Court, rule 3.1348(a)</i> states: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Monetary sanctions are mandatory when a party fails to respond to interrogatories, requests for production or requests for admission unless the court finds that the person subject to the sanctions acted with substantial justification. Plaintiff's assertion that electronic service was not allowed lacked substantial justification. Also, while plaintiff is correct that the Pitchess Objections are not waived because of a failure to timely serve responses to written discovery, there is no authority cited which holds that <i>Penal Code §§832.5-832.8</i> and <i>Evidence Code §§1043, 1045 and 1046</i> relieve the plaintiff from his obligation to at least respond to the discovery requests and timely assert the <i>Pitchess</i> Objections. Accordingly, the request for sanctions is GRANTED and plaintiff and his attorney, Corey Glave, are ordered to pay monetary sanctions, jointly and severally, in the amount of \$1,060 for each motion, for a total of \$4,240, to City, through its attorney of record, within 30 days. <i>Counsel for City is ordered to give notice of this ruling.</i>
9.	Carlton v. Ford Motor Company 24-1445099	Before the Court at present is the Demurrer filed by Defendants Ford Motor Company ("Ford") and Villa Ford of Orange ("Villa") (together the "Defendants") on 1/17/25. The Demurrer is directed to the Fifth and Sixth Causes of Action (each a "COA") in the Complaint filed by Plaintiffs Richard Carlton and Patricia Carlton ("Plaintiffs") on 12/6/24. The Demurrer is OVERRULED.

		The primary argument presented by Defendants is that these COAs are barred by the economic loss rule (the “ELR”), based on the recent decision in <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1. But <i>Rattagan</i> concerned tort claims based on conduct during a contractual relationship: it specifically did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Id.</i> at 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 addresses claims in this context, and after <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (<i>Dhital v. Nissan North America, Inc., supra</i>, 84 Cal.App.5th at 843.) The Demurrer to COA 6, based on the ELR, thus fails here. The Demurrer for COA 5 on ELR grounds is based on the same reasoning, and thus fails as well. Defendants also argue that these COAs are not adequately pled. But for COA 5, the Complaint asserts at ¶ 61 that Villa “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards,” and at ¶ 7 that the vehicle value has thus been diminished. The Demurrer fails to show why those allegations do not suffice for pleading purposes. For COA 6, Plaintiffs have alleged that Ford knew vehicles with the same transmission suffered from the stated defects but concealed that from consumers, that Plaintiffs would not have purchased the vehicle if they had known thereof, and that the vehicle value has thus been diminished. (Complaint, ¶¶ 7, 24 - 35 and 64-73.) They have also alleged a factual basis for a duty to disclose known defects. (See <i>Dhital v. Nissan North America, Inc., supra</i>, 84 Cal.App.5th at 843; <i>Gilead Tenofovir Cases</i> (2024) 98 Cal.App.5th 911, 949 [“a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects”].) The Demurrer fails to show why those allegations do not suffice for pleading purposes. The Demurrer is therefore OVERRULED. <i>Defendants are to file their Answers within 10 days and are to give notice of this ruling.</i>
10.	Fischer v. Fischer 24-1377424	Before the Court are the following motions: (1) demurrer filed by Defendants Ameristar Real Estate and Investments, Inc. (Ameristar), Fastrack Escrow, Inc.